
SUBSTITUTE SENATE BILL 6284

State of Washington

69th Legislature

2026 Regular Session

By Senate Environment, Energy & Technology (originally sponsored by Senators Llias, Boehnke, Shewmake, Harris, Conway, Hasegawa, Nobles, Stanford, and Wagoner)

READ FIRST TIME 02/04/26.

1 AN ACT Relating to consumer protections for artificial
2 intelligence systems; amending 2024 c 163 s 2 (uncodified); adding a
3 new chapter to Title 19 RCW; adding a new chapter to Title 42 RCW;
4 creating a new section; and providing expiration dates.

5 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF WASHINGTON:

6 NEW SECTION. **Sec. 1.** The legislature finds that artificial
7 intelligence is a dynamic technology that is changing the way
8 Washingtonians live, learn, and work. Emerging artificial
9 intelligence technologies seek to enhance information gathering and
10 decision making, create new efficiencies throughout the economy, and
11 advance scientific discovery. The legislature also recognizes that
12 there are potential risks associated with the rapid development and
13 deployment of artificial intelligence systems, including the
14 generation of bias and unintentional discrimination. These risks are
15 especially profound when an artificial intelligence system is used to
16 make decisions that have a material or legal impact on someone's
17 life.

18 The legislature recognizes Washington's role as a leader and
19 innovator within the high-technology economy. The legislature intends
20 to adopt an artificial intelligence regulatory framework that
21 continues to promote innovation, reduce risk, and protect residents

1 from discriminatory actions. The legislature further recognizes that
2 regulatory frameworks that align with national standards and specify
3 clear compliance requirements provide developers with certainty to
4 support continued innovation while also protecting consumers from
5 unfair or unclear artificial intelligence decisions.

6 Therefore, it is the intent of the legislature to protect
7 Washingtonians from algorithmic discrimination by establishing a
8 comprehensive risk-based approach to artificial intelligence
9 accountability. The legislature intends to regulate deployers of
10 artificial intelligence under the presumption that they are acting in
11 good faith when they comply with the provisions of this act. The
12 legislature also intends to ensure that government agencies are
13 transparent and accountable by requiring disclosure when consumer
14 interactions are supported by an artificial intelligence system.
15 Finally, the legislature intends to extend and expand the work of the
16 artificial intelligence task force to develop a framework for the
17 adoption of artificial intelligence in the workplace in a way that
18 centers workers and protects fairness and opportunity.

19 NEW SECTION. **Sec. 2.** The definitions in this section apply
20 throughout this chapter unless the context clearly requires
21 otherwise.

22 (1)(a) "Algorithmic discrimination" means the use of an
23 artificial intelligence system which results in any unlawful
24 differential impact that disfavors any individual or group of
25 individuals on the basis of chapter 49.60 RCW or federal law.

26 (b) "Algorithmic discrimination" does not include:

27 (i) Any offer, license, or use of a high-risk artificial
28 intelligence system by a developer or deployer for the sole purpose
29 of:

30 (A) The developer's or deployer's testing to identify, mitigate,
31 or prevent discrimination or otherwise ensure compliance with state
32 and federal law; or

33 (B) Expanding an applicant, customer, or participant pool to
34 increase diversity or redress historic discrimination; or

35 (ii) Any act or omission by or on behalf of a private club or
36 other establishment not in fact open to the public, as set forth in
37 Title II of the Civil Rights Act of 1964, 42 U.S.C. Sec. 2000a(e), as
38 amended.

1 (2) "Artificial intelligence" means the use of machine learning
2 and related technologies that use data to train statistical models
3 for the purpose of enabling computer systems to perform tasks
4 normally associated with human intelligence or perception, such as
5 computer vision, speech or natural language processing, and content
6 generation.

7 (3) "Consequential decision" means any decision that has a
8 material legal or similarly significant effect on the provision or
9 denial of any consumer to:

10 (a) Pardon, parole, probation, or any other release from
11 incarceration or court supervision;

12 (b) Education enrollment or an education opportunity;

13 (c) Access to employment;

14 (d) A financial or lending service;

15 (e) An essential government service;

16 (f) Access to health care services;

17 (g) Housing;

18 (h) Insurance; or

19 (i) Legal service.

20 (4) (a) "Consumer" means a person who is a resident of this state
21 and is acting only in an individual or household context.

22 (b) "Consumer" does not include a person acting in a commercial
23 or employment context.

24 (5) "Deploys" or "deployed" means to put a high-risk artificial
25 intelligence system into use.

26 (6) "Deployer" means any person doing business in this state that
27 deploys a high-risk artificial intelligence system to make a
28 consequential decision in the state.

29 (7) "Developer" means any person doing business in this state
30 that develops, or intentionally and substantially modifies, a high-
31 risk artificial intelligence system intended for use within the
32 state.

33 (8) (a) "High-risk artificial intelligence system" means any
34 artificial intelligence system that is specifically intended to
35 autonomously make, or be a substantial factor in making, a
36 consequential decision without meaningful human consideration.

37 (b) "High-risk artificial intelligence system" does not include:

38 (i) Any artificial intelligence system that is intended to:

39 (A) Perform any narrow procedural task;

40 (B) Improve the result of a previously completed human activity;

1 (C) Perform a preparatory task to an assessment relevant to a
2 consequential decision; or

3 (D) Detect any decision-making pattern, or any deviation from any
4 preexisting decision-making pattern;

5 (ii) Any antifraud technology, antimalware, antivirus,
6 calculator, cybersecurity, database, data storage, firewall, internet
7 domain registration, internet website loading, networking, robocall-
8 filtering, spam-filtering, spellchecking, spreadsheet, webcaching,
9 webhosting, search engine, or similar technology; or

10 (iii) Any technology that communicates in natural language for
11 the purpose of providing users with information, making referrals or
12 recommendations, answering questions, or generating other content,
13 and is subject to an acceptable use policy that prohibits generating
14 content that is unlawful.

15 (9) (a) "Intentional and substantial modification" or
16 "intentionally and substantially modifies" means a deliberate change
17 made to:

18 (i) An artificial intelligence system that at the time when the
19 change is implemented and any time thereafter, results in any new
20 material risk of algorithmic discrimination; or

21 (ii) A general purpose artificial intelligence model that affects
22 compliance of the general purpose artificial intelligence model,
23 materially changes the purpose of the general purpose artificial
24 intelligence model, or results in any new reasonably foreseeable risk
25 of algorithmic discrimination.

26 (b) "Intentional and substantial modification" does not include:

27 (i) Any customization made by deployers that is based on
28 legitimate nondiscriminatory business justifications, is within the
29 scope and purpose of the artificial intelligence tool, and that does
30 not result in a material change to the risks of algorithmic
31 discrimination; or

32 (ii) Any change made to a high-risk artificial intelligence
33 system, or the performance of a high-risk artificial intelligence
34 system, if the high-risk artificial intelligence system continues to
35 learn after such high-risk artificial intelligence system is offered,
36 sold, leased, licensed, given, or otherwise made available to a
37 deployer, or deployed, and such change is made to the high-risk
38 artificial intelligence system as a result of learning after the
39 system is offered, sold, leased, licensed, given, or otherwise made
40 available to the deployer or deployed and predetermined by the

1 deployer or a third party contracted by the deployer and included
2 within the initial impact assessment of such high-risk artificial
3 intelligence system as required in section 6 of this act.

4 (10) "Meaningful human consideration" means review or oversight
5 by one or more individuals who have training or expertise in the
6 decision being made and who have the authority to alter the decision
7 under review.

8 (11)(a) "Person" means any individual, association, corporation,
9 limited liability company, partnership, trust, or other legal entity.

10 (b) "Person" does not include any government or political
11 subdivision.

12 (12)(a) "Substantial factor" means a factor that:

13 (i) Uses the principal basis for making a consequential decision;

14 (ii) Is capable of altering the outcome of a consequential
15 decision; and

16 (iii) Is generated by an artificial intelligence system.

17 (b) "Substantial factor" does not include any use of an
18 artificial intelligence system to generate any content, decision,
19 prediction, or recommendation concerning a consumer that is used as
20 the principal basis to make a consequential decision concerning the
21 consumer.

22 NEW SECTION. **Sec. 3.** (1)(a) Beginning July 1, 2027, each
23 deployer of a high-risk artificial intelligence system must use
24 industry-standard means to protect consumers from any known or
25 reasonably foreseeable risks of algorithmic discrimination.

26 (b) In any enforcement action brought on or after July 1, 2027,
27 by the attorney general pursuant to section 10 of this act, there is
28 a rebuttable presumption that a deployer of a high-risk artificial
29 intelligence system used reasonable care as required under this
30 section if the deployer complied with this chapter.

31 (2)(a) By July 1, 2027, and at least annually thereafter, a
32 deployer or third party contracted by the deployer shall review the
33 deployment of each high-risk artificial intelligence system deployed
34 by the deployer to ensure that the high-risk artificial intelligence
35 system is not causing algorithmic discrimination.

36 (b) If a deployer subsequently discovers that the high-risk
37 artificial intelligence system has caused algorithmic discrimination,
38 the deployer, without unreasonable delay, but no later than 90 days
39 after the date of the discovery, shall send to the attorney general,

1 in a form and manner prescribed by the attorney general, a notice
2 disclosing the discovery.

3 (3) Nothing in this section may be construed to require a
4 deployer to disclose any trade secret, or other confidential or
5 proprietary information.

6 NEW SECTION. **Sec. 4.** (1) Beginning July 1, 2027, and except as
7 provided in section 6(6) of this act, each deployer of a high-risk
8 artificial intelligence system shall implement and maintain a risk
9 management policy and program to govern the deployer's deployment of
10 a high-risk artificial intelligence system.

11 (2)(a) The risk management policy and program must specify and
12 incorporate the principles, processes, and personnel that the
13 deployer uses to identify, document, and mitigate known or reasonably
14 foreseeable risks of algorithmic discrimination. The risk management
15 policy and program must include an iterative process that is planned,
16 implemented, and regularly and systematically reviewed and updated
17 over the lifecycle of the high-risk artificial intelligence system.

18 (b) A risk management policy and program implemented and
19 maintained pursuant to this subsection must be reasonable,
20 considering:

21 (i) The size and complexity of the deployer;

22 (ii) The nature and scope of the high-risk artificial
23 intelligence systems deployed by the deployer including, but not
24 limited to, the intended uses of such high-risk artificial
25 intelligence systems;

26 (iii) The sensitivity and volume of data processed in connection
27 with the high-risk artificial intelligence systems deployed by the
28 deployer; and

29 (iv) A risk management framework that either:

30 (A) Adheres to the guidance and standards set forth in the latest
31 version of the artificial intelligence risk management framework
32 published by the national institute of standards and technology,
33 ISO/IEC 42001, or another nationally or internationally recognized
34 risk management framework for artificial intelligence systems, if the
35 standards are substantially equivalent to or more stringent than the
36 requirements; or

37 (B) Complies with any risk management framework for artificial
38 intelligence systems that the attorney general, in the attorney
39 general's discretion, may designate.

1 (c) A risk management policy and program implemented and
2 maintained pursuant to this subsection (2) may cover multiple high-
3 risk artificial intelligence systems deployed by the deployer.

4 (3) Nothing in this section may be construed to require a
5 deployer to disclose any trade secret, or other confidential or
6 proprietary information.

7 NEW SECTION. **Sec. 5.** (1) Beginning July 1, 2027, and except as
8 provided in section 6(6) of this act, each developer of a high-risk
9 artificial intelligence system shall implement and maintain a risk
10 management policy and program to govern the developer's deployment of
11 a high-risk artificial intelligence system.

12 (2)(a) The risk management policy and program must specify and
13 incorporate the principles, processes, and personnel that the
14 deployer uses to identify, document, and mitigate known or reasonably
15 foreseeable risks of algorithmic discrimination. The risk management
16 policy and program must include an iterative process that is planned,
17 implemented, and regularly and systematically reviewed and updated
18 over the life cycle of the high-risk artificial intelligence system.

19 (b) A risk management policy and program implemented and
20 maintained pursuant to this subsection must be reasonable,
21 considering:

22 (i) The size and complexity of the developer;

23 (ii) The nature and scope of the high-risk artificial
24 intelligence systems deployed by the developer including, but not
25 limited to, the intended uses of such high-risk artificial
26 intelligence systems;

27 (iii) The sensitivity and volume of data processed in connection
28 with the high-risk artificial intelligence systems deployed by the
29 developer; and

30 (iv) A risk management framework that either:

31 (A) Adheres to the guidance and standards set forth in the latest
32 version of the artificial intelligence risk management framework
33 published by the national institute of standards and technology,
34 ISO/IEC 42001, or another nationally or internationally recognized
35 risk management framework for artificial intelligence systems, if the
36 standards are substantially equivalent to or more stringent than the
37 requirements; or

1 (B) Complies with any risk management framework for artificial
2 intelligence systems that the attorney general, in the attorney
3 general's discretion, may designate.

4 (c) A risk management policy and program implemented and
5 maintained pursuant to this subsection (2) may cover multiple high-
6 risk artificial intelligence systems deployed by the deployer.

7 (3) A developer that also serves as a deployer for any high-risk
8 artificial intelligence system may not be required to generate the
9 documentation required by this section unless such high-risk
10 artificial intelligence system is provided to an unaffiliated entity
11 acting as a deployer or as otherwise required by law.

12 (4) Nothing in this section may be construed to require a
13 developer to disclose any trade secret, or other confidential or
14 proprietary information.

15 (5) This section does not apply to a developer with fewer than 50
16 full-time equivalent employees.

17 NEW SECTION. **Sec. 6.** (1) Except as provided in subsection (6)
18 of this section, a deployer that deploys a high-risk artificial
19 intelligence system on or after July 1, 2027, or a third party
20 contracted by the deployer for such purposes, shall complete an
21 impact assessment for:

22 (a) The high-risk artificial intelligence system; and

23 (b) A deployed high-risk artificial intelligence system no later
24 than 90 days after any intentional and substantial modification to
25 such high-risk artificial intelligence system is made available.

26 (2) Each impact assessment completed pursuant to this section
27 must include, at a minimum, and to the extent reasonably known by, or
28 available to, the deployer:

29 (a) A statement by the deployer disclosing the purpose, intended
30 use cases and deployment context of, and benefits afforded by, the
31 high-risk artificial intelligence system;

32 (b) An analysis of whether the deployment of the high-risk
33 artificial intelligence system poses any known or reasonably
34 foreseeable risks of algorithmic discrimination and, if so, the
35 nature of such algorithmic discrimination and the steps that have
36 been taken to mitigate such risks;

37 (c) A description of the following:

38 (i) The categories of data the high-risk artificial intelligence
39 system processes as inputs;

1 (ii) The outputs the high-risk artificial intelligence system
2 produces;

3 (iii) Any metrics used to evaluate the performance and known
4 limitations of the high-risk artificial intelligence system;

5 (iv) A description of any transparency measures taken concerning
6 the high-risk artificial intelligence system, such as any measures
7 taken to disclose to a consumer that such high-risk artificial
8 intelligence system is in use when such high-risk artificial
9 intelligence system is in use; and

10 (v) A description of the postdeployment monitoring and user
11 safeguards provided concerning such high-risk artificial intelligence
12 system, such as the oversight process established by the deployer to
13 address issues arising from deployment of such high-risk artificial
14 intelligence system.

15 (3) In addition to the information required under subsection
16 (2)(c) of this section, each impact assessment completed following an
17 intentional and substantial modification made to a high-risk
18 artificial intelligence system on or after July 1, 2027, must include
19 a statement disclosing the extent to which the high-risk artificial
20 intelligence system was used in a manner that was consistent with, or
21 varied from, the developer's intended uses of such high-risk
22 artificial intelligence system.

23 (4) A single impact assessment may address a comparable set of
24 high-risk artificial intelligence systems deployed by a deployer.

25 (5) If a deployer, or a third party contracted by the deployer,
26 completes an impact assessment for the purpose of complying with
27 another applicable law or regulation, such impact assessment
28 satisfies the requirements established in this section if such impact
29 assessment is reasonably similar in scope and effect to the impact
30 assessment that would otherwise be completed pursuant to this
31 subsection.

32 (6) A deployer shall maintain the most recently completed impact
33 assessment for a high-risk artificial intelligence system as required
34 under this section, relevant records supporting the impact
35 assessment, and prior impact assessments, if any, for a period of at
36 least three years following the final deployment of the high-risk
37 artificial intelligence system.

38 (7) Nothing in this section may be construed to require a
39 deployer to disclose any trade secret, or other confidential or
40 proprietary information.

1 NEW SECTION. **Sec. 7.** (1) The requirements in sections 4 and 6
2 of this act do not apply to a deployer if, at the time the deployer
3 deploys a high-risk artificial intelligence system and at all times
4 while the high-risk artificial intelligence system is deployed:

5 (a) The deployer:

6 (i) Employs fewer than 50 full-time equivalent employees; and

7 (ii) Does not use the deployer's own data to train the high-risk
8 artificial intelligence system;

9 (b) The high-risk artificial intelligence system:

10 (i) Is used for the intended uses that are disclosed by the
11 deployer; and

12 (ii) Continues learning based on data derived from sources other
13 than the deployer's own data; and

14 (c) The deployer makes available to consumers any impact
15 assessment that:

16 (i) The developer of the high-risk artificial intelligence system
17 has completed and provided to the deployers; and

18 (ii) Includes information that is substantially similar to the
19 information in the impact assessment required under section 6 of this
20 act.

21 (2) Nothing in this section may be construed to require a
22 deployer to disclose any trade secret, or other confidential or
23 proprietary information.

24 NEW SECTION. **Sec. 8.** Beginning July 1, 2026, each time a
25 deployer deploys a high-risk artificial intelligence system to make,
26 or be a substantial factor in making, a consequential decision
27 concerning a consumer, the deployer shall:

28 (1) Notify the consumer that the deployer has deployed an
29 artificial intelligence system to make, or be a substantial factor in
30 making, a consequential decision before the decision is made; and

31 (2) Provide to the consumer a statement disclosing:

32 (a) The purpose of the high-risk artificial intelligence system
33 and the nature of the consequential decisions;

34 (b) The contact information for the deployer; and

35 (c) A description, in plain language, of the high-risk artificial
36 intelligence system.

37 NEW SECTION. **Sec. 9.** (1) Nothing in this chapter may be
38 construed to:

1 (a) Restrict a developer's, deployer's, or other person's ability
2 to:

3 (i) Comply with federal, state, or municipal law;

4 (ii) Comply with a civil, criminal, or regulatory inquiry,
5 investigation, subpoena, or summons by federal, state, municipal, or
6 other governmental authorities;

7 (iii) Cooperate with law enforcement agencies concerning conduct
8 or activity that the developer, deployer, or other person reasonably
9 and in good faith believes may violate federal, state, or municipal
10 law;

11 (iv) Investigate, establish, exercise, prepare for, or defend
12 legal claims;

13 (v) Take immediate steps to protect an interest that is essential
14 for the life or physical safety of a consumer or another individual;

15 (vi) Engage in public or peer-reviewed scientific or statistical
16 research in the public interest that adheres to all other applicable
17 ethics and privacy laws and is conducted in accordance with 45 C.F.R.
18 Part 46, as amended from time to time, or relevant requirements
19 established by the federal food and drug administration;

20 (vii) Conduct any research, testing, or development activities
21 regarding any artificial intelligence system or model, other than
22 testing conducted under real world conditions, before such artificial
23 intelligence system or model is placed on the market, deployed, or
24 put into service, as applicable;

25 (viii) Effectuate a product recall;

26 (ix) Identify and repair technical errors that impair existing or
27 intended functionality; or

28 (x) Assist another developer, deployer, or person with any of the
29 obligations imposed under this chapter;

30 (b) Impose any obligation on a developer, deployer, or other
31 person that adversely affects the rights or freedoms of any person
32 including, but not limited to, the rights of any person to freedom of
33 speech or freedom of the press guaranteed in the First Amendment to
34 the United States Constitution;

35 (c) Apply to any developer, deployer, or other person:

36 (i) Insofar as such developer, deployer, or other person
37 develops, deploys, puts into service, or intentionally and
38 substantially modifies, as applicable, a high-risk artificial
39 intelligence system that has been approved, authorized, certified,
40 cleared, or granted:

1 (A) By a federal agency, such as the federal food and drug
2 administration or the federal aviation administration, acting within
3 the scope of such federal agency's authority; or

4 (B) In compliance with standards established by any federal
5 agency including, but not limited to, standards established by the
6 federal office of the national coordinator for health information
7 technology;

8 (ii) Conducting any research to support an application for
9 approval or certification from any federal agency including, but not
10 limited to, the federal aviation administration, the federal
11 communications commission, or the federal food and drug
12 administration, or otherwise subject to review by such federal
13 agency;

14 (iii) Performing work under, or in connection with, a contract
15 with the United States department of commerce, the United States
16 department of defense, or the national aeronautics and space
17 administration, unless such developer, deployer, or other person is
18 performing such work on a high-risk artificial intelligence system
19 that is used to make, or as a substantial factor in making, a
20 decision concerning employment or housing; or

21 (iv) That is a covered entity or business associate within the
22 meaning of the health insurance portability and accountability act of
23 1996, P.L. 104-191, and the regulations promulgated thereunder, as
24 both may be amended from time to time, and is:

25 (A) Providing health care recommendations that are generated by
26 an artificial intelligence system and require a health care provider
27 to take action to implement such recommendations; or

28 (B) Utilizing an artificial intelligence system for health care
29 operations, performance, and quality improvement purposes including,
30 but not limited to, administrative, quality measurement, security,
31 patient access, scheduling, referral management, transfer
32 coordination, care coordination, bed management, or eligibility
33 screening;

34 (d) Apply to any artificial intelligence system that is acquired
35 by or for the federal government or any federal agency or department
36 including, but not limited to, the United States department of
37 commerce, the United States department of defense, or the national
38 aeronautics and space administration, unless such artificial
39 intelligence system is a high-risk artificial intelligence system

1 that is used to make, or as a substantial factor in making, a
2 decision concerning employment or housing;

3 (e) Apply to any insurer, or any high-risk artificial
4 intelligence system developed by or for or deployed by an insurer for
5 use in the business of insurance, if such insurer is regulated and
6 supervised by the office of the insurance commissioner or a
7 comparable federal regulating body and:

8 (i) Is subject to examination by such entity under any existing
9 statutes, rules, or regulations pertaining to unfair trade practices
10 and unfair discrimination prohibited under RCW 48.30.300, or
11 published guidance or regulations that apply to the use of high-risk
12 artificial intelligence systems; and

13 (ii) Such guidance or regulations aid in the prevention and
14 mitigation of algorithmic discrimination caused by the use of a high-
15 risk artificial intelligence system or any risk of algorithmic
16 discrimination that is reasonably foreseeable as a result of the use
17 of a high-risk artificial intelligence system;

18 (f) Delegate existing regulatory oversight of the business of
19 insurance to any department or agency other than the office of the
20 insurance commissioner; or

21 (g) Apply to any financial institution. For purposes of this
22 subsection, "financial institution" includes the following:

23 (i) A bank, foreign bank, national bank, mutual savings bank, or
24 savings association, as defined in RCW 30A.04.010;

25 (ii) A credit union, out-of-state credit union, or federal credit
26 union as defined in RCW 31.12.005;

27 (iii) A mortgage lender as defined in RCW 43.180.020; or

28 (iv) Any subsidiary, affiliate, or service provider of an entity
29 listed in (g)(i) through (iii) of this subsection.

30 (2) If a developer, deployer, or other person engages in any
31 action pursuant to an exemption set forth in this section, the
32 developer, deployer, or other person bears the burden of
33 demonstrating that such action qualifies for such exemption.

34 NEW SECTION. **Sec. 10.** (1)(a) The attorney general may bring an
35 action in the name of the state, or as parens patriae on behalf of
36 persons residing in the state, to enforce this chapter. For actions
37 brought by the attorney general to enforce this chapter, a violation
38 of this chapter is an unfair or deceptive act in trade or commerce
39 for the purpose of applying the consumer protection act, chapter

1 19.86 RCW. An action to enforce this chapter may not be brought under
2 RCW 19.86.090.

3 (b) The office of the attorney general, before commencing an
4 action under the consumer protection act, chapter 19.86 RCW, must
5 provide 45 days' written notice to a deployer or developer of the
6 alleged violation of this chapter. For the first violation, the
7 developer or deployer may cure the noticed violation within 60 days
8 of receiving the written notice.

9 (c) This chapter may be enforced solely by the attorney general
10 under the consumer protection act, chapter 19.86 RCW, and may not be
11 construed as providing the basis for, or be subject to, a private
12 right of action for violations of this chapter. This chapter does not
13 incorporate RCW 19.86.093.

14 (2) Nothing in this chapter may be construed to limit or
15 otherwise affect the obligations of developers and deployers under
16 applicable laws, rules, or regulations relating to data privacy or
17 security.

18 NEW SECTION. **Sec. 11.** (1) A government agency that makes
19 available an artificial intelligence system intended to interact with
20 consumers must disclose to each consumer, before or at the time of
21 interaction, that the consumer is interacting with an artificial
22 intelligence system. The disclosure must be:

23 (a) Clear and conspicuously posted;

24 (b) Written in plain language; and

25 (c) May not use a dark pattern.

26 (2) The disclosure may be provided by using a hyperlink to direct
27 a consumer to a separate web page.

28 (3) A person is required to make the disclosure under subsection
29 (1) of this section regardless of whether it would be obvious to a
30 reasonable consumer that the consumer is interacting with an
31 artificial intelligence system.

32 NEW SECTION. **Sec. 12.** Sections 1 through 10 of this act
33 constitute a new chapter in Title 19 RCW.

34 NEW SECTION. **Sec. 13.** Section 11 of this act constitutes a new
35 chapter in Title 42 RCW.

1 **Sec. 14.** 2024 c 163 s 2 (uncodified) is amended to read as
2 follows:

3 (1) ~~((Subject to the availability of amounts appropriated for~~
4 ~~this specific purpose, a))~~ A task force to assess current uses and
5 trends and make recommendations to the legislature regarding
6 guidelines and potential legislation for the use of artificial
7 intelligence systems is established.

8 (2) The task force is composed of an executive committee
9 consisting of members as provided in this subsection.

10 (a) The president of the senate shall appoint one member from
11 each of the two largest caucuses of the senate.

12 (b) The speaker of the house of representatives shall appoint one
13 member from each of the two largest caucuses of the house of
14 representatives.

15 (c) The attorney general shall appoint the following members,
16 selecting only individuals with experience in technology policy:

17 (i) One member from the office of the governor;

18 (ii) One member from the office of the attorney general;

19 (iii) One member from Washington technology solutions;

20 (iv) One member from the Washington state auditor;

21 (v) One member representing universities or research institutions
22 that are experts in the design and effect of an algorithmic system;

23 (vi) One member representing private technology industry groups;

24 (vii) One member representing business associations;

25 (viii) Three members representing community advocate
26 organizations that represent communities that are disproportionately
27 vulnerable to being harmed by algorithmic bias;

28 (ix) One member representing the LGBTQ+ community;

29 (x) One member representing the retail industry;

30 (xi) One member representing the hospitality industry;

31 (xii) One member representing statewide labor organizations; and

32 (xiii) One member representing public safety.

33 (d) The task force may meet in person or by telephone conference
34 call, videoconference, or other similar telecommunications method, or
35 a combination of such methods.

36 (e) The executive committee may convene subcommittees to advise
37 the task force on the recommendations and findings set out in
38 subsection (4) of this section.

39 (i) The executive committee shall define the scope of activity
40 and subject matter focus required of the subcommittees including, but

1 not limited to: Education and workforce development; public safety
2 and ethics; health care and accessibility; labor; government and
3 public sector efficiency; state security and cybersecurity; consumer
4 protection and privacy; and industry and innovation.

5 (ii) Subcommittees and their members may be invited to
6 participate on an ongoing, recurring, or one-time basis.

7 (iii) The executive committee in collaboration with the attorney
8 general shall appoint members to the subcommittees that must be
9 comprised of industry participants, subject matter experts,
10 representatives of federally recognized tribes, or other relevant
11 stakeholders.

12 (iv) Each subcommittee must contain at least one member
13 possessing relevant industry expertise and at least one member from
14 an advocacy organization that represents communities that are
15 disproportionately vulnerable to being harmed by algorithmic bias
16 including, but not limited to: African American; Hispanic American;
17 Native American; Asian American; Native Hawaiian and Pacific Islander
18 communities; religious minorities; individuals with disabilities; and
19 other vulnerable communities.

20 (v) Meeting summaries and reports delivered by the subcommittees
21 to the executive committee must be made available on the attorney
22 general's website within 30 days of delivery.

23 (3) The office of the attorney general must administer and
24 provide staff support for the task force. The office of the attorney
25 general may, when deemed necessary by the task force, retain
26 consultants to provide data analysis, research, recommendations,
27 training, and other services to the task force for the purposes
28 provided in subsection (4) of this section. The office of the
29 attorney general may work with the task force to determine
30 appropriate subcommittees as needed.

31 (4) The executive committee and subcommittees of the task force
32 shall examine the development and use of artificial intelligence by
33 private and public sector entities and make recommendations to the
34 legislature regarding guidelines and potential legislation for the
35 use and regulation of artificial intelligence systems to protect
36 Washingtonians' safety, privacy, and civil and intellectual property
37 rights. The task force findings and recommendations must include:

38 (a) A literature review of public policy issues with artificial
39 intelligence, including benefits and risks to the public broadly,
40 historically excluded communities, and other identifiable groups,

1 racial equity considerations, workforce impacts, and ethical
2 concerns;

3 (b) A review of existing protections under state and federal law
4 for individual data and privacy rights, safety, civil rights, and
5 intellectual property rights, and how federal, state, and local laws
6 relating to artificial intelligence align, differ, conflict, and
7 interact across levels of government;

8 (c) A recommended set of guiding principles for artificial
9 intelligence use informed by standards established by relevant
10 bodies, including recommending a definition for ethical artificial
11 intelligence and guiding principles;

12 (d) Identification of high-risk uses of artificial intelligence,
13 including those that may negatively affect safety or fundamental
14 rights;

15 (e) Opportunities to support and promote the innovation of
16 artificial intelligence technologies through grants and incentives;

17 (f) Recommendations on appropriate uses of and limitations on the
18 use of artificial intelligence by state and local governments and the
19 private sector;

20 (g) Recommendations relating to the appropriate and legal use of
21 training data;

22 (h) Algorithmic discrimination issues which may occur when
23 artificial intelligence systems are used and contribute to
24 unjustified differential treatment or impacts disfavoring people on
25 the basis of race, color, national origin, citizen or immigration
26 status, families with children, creed, religious belief or
27 affiliation, sex, marital status, the presence of any sensory,
28 mental, or physical disability, age, honorably discharged veteran or
29 military status, sexual orientation, gender expression or gender
30 identity, or any other protected class under RCW 49.60.010 and
31 recommendations to mitigate and protect against algorithmic
32 discrimination;

33 (i) Recommendations on minimizing unlawful discriminatory or
34 biased outputs or applications;

35 (j) Recommendations on prioritizing transparency so that the
36 behavior and functional components artificial intelligence can be
37 understood in order to enable the identification of performance
38 issues, safety and privacy concerns, biases, exclusionary practices,
39 and unintended outcomes;

1 (k) Racial equity issues posed by artificial intelligence systems
2 and ways to mitigate the concerns to build equity into the systems;

3 (l) Civil liberties issues posed by artificial intelligence
4 systems and civil rights and civil liberties protections to be
5 incorporated into artificial intelligence systems;

6 (m) Recommendations as to how the state should educate the public
7 on the development and use of artificial intelligence, including
8 information about data privacy and security, data collection and
9 retention practices, use of individual data in machine learning, and
10 intellectual property considerations regarding generative artificial
11 intelligence;

12 (n) A review of protections of personhood, including replicas of
13 voice or likeness, in typical contract structures, and a review of
14 artificial intelligence tools used to support employment decisions;

15 (o) Proposed state guidelines for the use of artificial
16 intelligence to inform the development, deployment, and use of
17 artificial intelligence systems to:

18 (i) Retain appropriate human agency and oversight;

19 (ii) Be subject to internal and external security testing of
20 systems before public release for high-risk artificial intelligence
21 systems;

22 (iii) Protect data privacy and security;

23 (iv) Promote appropriate transparency for consumers when they
24 interact with artificial intelligence systems or products created by
25 artificial intelligence; and

26 (v) Ensure accountability, considering oversight, impact
27 assessment, auditability, and due diligence mechanisms;

28 (p) A review of existing civil and criminal remedies for
29 addressing potential harms resulting from the use of artificial
30 intelligence systems and recommendations, if needed, for new means of
31 enforcement and remedies; and

32 (q) Recommendations for establishing an ongoing committee that
33 must study emerging technologies not limited to artificial
34 technology.

35 (5) The executive committee of the task force must hold its first
36 meeting within 45 days of final appointments to the task force and
37 must meet at least twice each year thereafter. The task force must
38 submit reports to the governor and the appropriate committees of the
39 legislature detailing its findings and recommendations. A preliminary
40 report must be delivered by December 31, 2024, an interim report by

1 December 1, 2025, and a final report by July 1, ((2026)) 2027.
2 Meeting summaries must be posted to the website of the attorney
3 general's office within 30 days of any meeting by the task force.

4 (6) Legislative members of the task force shall be reimbursed for
5 travel expenses in accordance with RCW 44.04.120. Nonlegislative
6 members are not entitled to be reimbursed for travel expenses if they
7 are elected officials or are participating on behalf of an employer,
8 governmental entity, or other organization. Any reimbursement for
9 other nonlegislative members is subject to chapter 43.03 RCW.

10 (7) To ensure that the task force has diverse and inclusive
11 representation of those affected by its work, task force members,
12 including subcommittee members, whose participation in the task force
13 may be hampered by financial hardship and may be compensated as
14 provided in RCW 43.03.220.

15 (8) The definitions in this subsection apply throughout this
16 section unless the context clearly requires otherwise.

17 (a) "Artificial intelligence" means the use of machine learning
18 and related technologies that use data to train statistical models
19 for the purpose of enabling computer systems to perform tasks
20 normally associated with human intelligence or perception, such as
21 computer vision, speech or natural language processing, and content
22 generation.

23 (b) "Generative artificial intelligence" means an artificial
24 intelligence system that generates novel data or content based on a
25 foundation model.

26 (c) "Machine learning" means the process by which artificial
27 intelligence is developed using data and algorithms to draw
28 inferences therefrom to automatically adapt or improve its accuracy
29 without explicit programming.

30 (d) "Training data" means labeled data that is used to teach
31 artificial intelligence models or machine learning algorithms to make
32 proper decisions. Training data may include, but is not limited to,
33 annotated text, images, video, or audio.

34 (9) This section expires June 30, ((2027)) 2028.

35 NEW SECTION. **Sec. 15.** The artificial intelligence workplace
36 advisory group is established for the purpose of developing
37 artificial intelligence policy related to the workplace. The
38 artificial intelligence workplace advisory group shall report to the

1 artificial intelligence task force established in section 2, chapter
2 163, Laws of 2024 as prescribed in subsection (4) of this section.

3 (2) The attorney general shall appoint the following members to
4 the artificial intelligence workplace advisory group:

5 (a) Two members representing statewide labor organizations where
6 the statewide labor organization represents at least 200,000 union
7 members in Washington state;

8 (b) Two members representing the business community;

9 (c) One member representing public sector employees;

10 (d) One member representing private sector employees;

11 (e) One member representing higher education institutions with
12 expertise in artificial intelligence and the workforce;

13 (f) One member with expertise in ethics and artificial
14 intelligence; and

15 (g) Other members as deemed appropriate by the attorney general.

16 (3) The artificial intelligence workplace advisory group is
17 responsible for developing guiding principles for the use of
18 artificial intelligence in the workplace. At a minimum, the guiding
19 principles must prioritize the responsible and ethical use of
20 artificial intelligence tools in ways that protect an individual's
21 privacy and minimize the risk of bias in the workplace.

22 (4) The artificial intelligence workplace advisory group shall
23 deliver an interim report on the development of guiding principles
24 for artificial intelligence in the workplace to the artificial
25 intelligence task force by December 1, 2026, and a final report by
26 March 1, 2027. The final report must be included in the artificial
27 intelligence task force's final report as required by section 2(5),
28 chapter 163, Laws of 2024.

29 (5) This section expires June 30, 2028.

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